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File No.: EXP202306256 (RR/00541/2023)  
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## RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by THE MAIL TRACK COMPANY, S.L. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated June 23, 2023, and based on the following

### FACTS

FIRST: On June 23, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file PS/00328/2022, by virtue of which THE MAIL TRACK COMPANY, S.L., with NIF B66095670, was imposed:

- For a violation of Articles 13 and 14 of the GDPR, classified under Article 83.5 of the GDPR, a fine of €20,000 (twenty thousand euros).
- For a violation of Article 6 of the GDPR, classified under Article 83.5 of the GDPR, a fine of €30,000 (thirty thousand euros).
- For a violation of Article 5.1.a) of the GDPR, classified under Article 83.5 of the GDPR, a fine of €50,000 (fifty thousand euros).

This resolution, which was notified to the appellant on June 26, 2023, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), and subsidiarily in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00328/2022, the following were recorded:

FIRST: On October 15, 2020, an email was sent from the address \*\*\*EMAIL.1 with the subject "[Helpdesk] Ask for help." At the bottom of this email, the legend "Sender notified by Mailtrack" (in English the original legend) is observed.

SECOND: On November 24, 2020, an email was sent from the address \*\*\*EMAIL.1 with the subject "[Helpdesk] Internet suspension." At the bottom of this email, the legend "Sender notified by Mailtrack" (in English the original legend) is observed.

THIRD: In their complaint dated December 29, 2020, the complainant states that they received emails implementing MAILTRACK software, in which, as a signature footer, there is an HTML code excerpt with the following links to external content:

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- Link to the homepage of the MAILTRACK website: [https://mailtrack.io?utm\\_source=3Dgmail&utm\\_medium=3Dsignature&utm\\_campaign=3Dsignaturevirality5&](https://mailtrack.io?utm_source=3Dgmail&utm_medium=3Dsignature&utm_campaign=3Dsignaturevirality5&)

- Links to the following images:

1. [https://s3.amazonaws.com/mailtrack-signature/sender\\_notified.gif](https://s3.amazonaws.com/mailtrack-signature/sender_notified.gif)
2. <https://mailtrack.io/trace/mail/34d1968e7786106=1ec22f7e62831bb7e606459df.png?u=3D6353628>

FOURTH: The privacy policy of the website <https://mailtrack.io> as of January 22, 2021, indicated the following content:

A) Information prior to the table of contents of the privacy policy

"(...) Last modification: September 2020.

(...)

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”

B) Processing of personal data as data controller  
C) Regarding the data of the recipients of the emails that MAILTRACK processes:

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D) Regarding the data subject to processing and the relationship between MAILTRACK and the user of its services:

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E) Finally, it is stated regarding the exclusion from the MAILTRACK service:

FIFTH: On May 11, 2022, this Agency carried out the following checks:

- After clearing the cache, cookies, and other stored data from the Google Chrome web browser (...) (Official build) (64 bits), and after forcing the browser to download the latest version of the mailtrack.io webpage hosted on the remote server, by pressing the key combination Control + F5, it is

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Click on the “Install for Free” option, and the extension “Tracking for Gmail and Mail Merge – Mailtrack” is added to Chrome. Next, Mailtrack is connected to the Gmail account “\*\*\*EMAIL.2” via the “Connect with Google” button that appears on the screen (by entering the account name and password for this Gmail account). Permission is granted to Mailtrack to “Read, compose, send, and permanently delete emails from Gmail” in the account “\*\*\*EMAIL.2”, and the “Free” plan is selected. After completing the installation of Mailtrack, access is made to the Gmail account “\*\*\*EMAIL.2”, where a message appears indicating that Mailtrack is installed, and an email is sent to the address “\*\*\*EMAIL.3” with the title “Mailtrack test email”.

- Next, the Mozilla Firefox web browser version 100.0 (64-bit) is opened. After clearing cookies, site data, and cached data stored in the web browser, and after forcing the browser to download the latest version of the webpage www.gmail.com hosted on the remote server by pressing the Control + F5 key combination, the user logs into the Gmail account “\*\*\*EMAIL.3” and observes that in the “Inbox” folder, the email previously sent from the account “\*\*\*EMAIL.2” with the title “Mailtrack test email” appears.

- Subsequently, in the Google Chrome browser, access is made to the Gmail account “\*\*\*EMAIL.2” and it is observed that in the “Sent” folder, the email just sent is marked as sent but not yet read.

- In the Firefox browser, the user “\*\*\*EMAIL.3” accesses the email received from the account “\*\*\*EMAIL.2” with the title “Mailtrack test email”. The following “GET” messages are sent:

The two “GET” requests that appear correspond to two images:

- The image [https://ci3.googleusercontent.com/proxy/X71R2-1kvm2hucPSUcfQaJ5swx7gM4\\_gpfzyzACm0rQOZDhkd\\_-7NXudEu6ukIMvfN\\_4k4D4TcQe4oKUApB-mVZXRJRvaMoyPrD5ZC-Af5ShidY4ekE=s0-d-e1-ft#https://s3.amazonaws.com/mailtrack-signature/sender-notified-72.gif](https://ci3.googleusercontent.com/proxy/X71R2-1kvm2hucPSUcfQaJ5swx7gM4_gpfzyzACm0rQOZDhkd_-7NXudEu6ukIMvfN_4k4D4TcQe4oKUApB-mVZXRJRvaMoyPrD5ZC-Af5ShidY4ekE=s0-d-e1-ft#https://s3.amazonaws.com/mailtrack-signature/sender-notified-72.gif), of 72x72 pixels with the following shape:

- The image [https://ci4.googleusercontent.com/proxy/Q\\_IFYYstrvjE7DkslWL0J-1TdN9d2NQHzYYPDH RK8aJvgh\\_JDS48BO4U4ZNR6ZP7nLgVU6L5lqagqLK h1ve69XCOaYgUsC-oUvqKeDpqWga8zvl7G8D9to4wiKGhDaBekbu1yDuMFK0b=s0-d-e1-ft#https://mailtrack.io/trace/mail/1a08337c2806852fe5793258817bbcbc48f7a2e9.png?u=8486038](https://ci4.googleusercontent.com/proxy/Q_IFYYstrvjE7DkslWL0J-1TdN9d2NQHzYYPDH RK8aJvgh_JDS48BO4U4ZNR6ZP7nLgVU6L5lqagqLK h1ve69XCOaYgUsC-oUvqKeDpqWga8zvl7G8D9to4wiKGhDaBekbu1yDuMFK0b=s0-d-e1-ft#https://mailtrack.io/trace/mail/1a08337c2806852fe5793258817bbcbc48f7a2e9.png?u=8486038), of 1x1 pixels.

- In the Google Chrome browser (where the Gmail account “\*\*\*EMAIL.2” was logged in), it is observed that in the “Sent” folder of Gmail, the double check of the email that was sent to “\*\*\*EMAIL.3” with the title “Mailtrack test email” has changed.

- In the Firefox browser (where the Gmail account “\*\*\*EMAIL.3” was logged in), access is made to the “Mailtrack” link that appeared in the signature footer of the email received from the account “\*\*\*EMAIL.2” with the title “Mailtrack test email”. After clicking on this “Mailtrack” link (which points to the address “[https://mailtrack.io/?utm\\_source=gmail&utm\\_medium=signature&utm\\_campaign=signaturevirality11&](https://mailtrack.io/?utm_source=gmail&utm_medium=signature&utm_campaign=signaturevirality11&)”), the homepage of the Mailtrack website opens. It is observed that at the bottom of this page, there is a link titled “Privacy”, which points to the URL <https://mailtrack.io/es/privacy>:

SIXTH: As of June 16, 2022, the webpage “<https://mailtrack.zendesk.com/hc/es/articles/360005941257-Exclusi%C3%B3n-evite-ser-rastreado-por-los-servicios-de-seguimiento-de-correo-electr%C3%B3nico>” explains how to avoid being tracked by the MAILTRACK service, with the following content:

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SEVENTH: The privacy policy of the website <https://mailtrack.io> as of April 20, 2023 indicates the following content:

A) Information prior to the table of contents of the privacy policy

“(…) Last modification: April 2023”.

The box prior to the table of contents of the privacy policy was removed.

B) Processing of personal data as data controller

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C) Regarding the data of the recipients of the emails processed by MAILTRACK:

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D) Regarding the data subject to processing and the relationship between MAILTRACK and the user of its services:

E) Finally, it is stated regarding the exclusion from the MAILTRACK service:

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EIGHTH: MAILTRACK offers an email tracking tool that allows senders to know whether their emails

have been opened or not, through a pixel-based tracking system. The tool is offered as an extension in the Chrome browser for Gmail users.

MAILTRACK provides software, with a free version for tracking emails so that the sender of an email is informed through the program that the recipient has opened it and when. Additionally, such emails provide a link to the homepage of mailtrack.io. From this homepage, the privacy policy can be accessed by scrolling to the bottom of the page and clicking on the link titled "Privacy". MAILTRACK also offers paid versions that allow the sender of the emails to hide the message indicating that such emails were sent using the Mailtrack tool.

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NINTH:

A

April 24, 2023,  
the website

<https://mailtrack.zendesk.com/hc/es/articles/10495982191261-Exclusi%C3%B3n-evite-ser-rastreado-por-los-servicios-de-seguimiento-de-correo-electr%C3%B3nico>) shows the following content:

TENTH: In the year 2021, THE MAIL TRACK COMPANY SL had sales of 3,445,699 euros and had 23 employees.

THIRD: The appellant submitted on July 26, 2023, to this Spanish Agency for Data Protection, a request for reconsideration.

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

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In relation to the allegations made by the appellant in the appeal, a response is provided in the order presented by MAILTRACK:

"FOURTH.- FACTUAL ISSUES OF THE RESOLUTION THAT ARE INCORRECT AND MAY BE DETERMINATIVE"

"- Tenth Background."

In this subsection, MAILTRACK alleges "the general principle of extension of the initially granted deadlines" and that the copy of the file was delivered to it the day before the deadline for allegations expired.

In response to these arguments, first of all, the LPACAP does not establish the cited "general principle of extension of granted deadlines," as the wording of Article 32.1 of the LPACAP indicates that the granting of an extension must be interpreted and applied by the Administration restrictively ("...may grant...").

On the other hand, once the allegation procedure regarding the initiation agreement referred to by

MAILTRACK was concluded, it had a period of ten days to formulate allegations, when, on May 2, 2023, the proposal for resolution was notified to it, so it had sufficient time to consult the copy of the file.

Finally, MAILTRACK does not provide any evidence that the agreement to deny the extension of the deadline for allegations and the copy of the file were received on different days, contrary to the receipt in the file issued by the courier company.

“Proven Facts First and Second.”

In this subsection, MAILTRACK states the absence of information about the emails, it can only see a very partial content of some emails, it cannot see either their complete content or who sent them to the complainant, and it is not clarified in the Proven Facts which emails motivated the complaint.

In response to this argument, it should be noted that the content of the emails received by the complainant is irrelevant regarding the operation of the MAILTRACK service and, consequently, for the purposes of determining the liability of the respondent in the facts subject to this procedure.

Furthermore, MAILTRACK has had access to the senders of the emails, even mentioning them in its appeal.

On the other hand, MAILTRACK has had access to the complaint (page 28 of the file), in which the complainant states (unofficial translation): “I frequently come into contact with this 'Mailtrack' in the emails that are sent to me.” On February 21, 2023, a series of emails provided by the complainant along with the complaint were incorporated into the file, which prove the receipt of

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said emails and that in them the sender made use of the MAILTRACK tool.

In the Proven Facts First and Second, two of the emails that the claiming party attached to its complaint are included. In Proven Fact Third, it states that “the claiming party claims to have received emails that implement the MAILTRACK software.”

For all these reasons, it can be affirmed that MAILTRACK has been aware of all the emails on which the claiming party has based its complaint and, once incorporated into the file, they have served to substantiate the decision made.

“Proven Fact Seventh.”

According to MAILTRACK, in any case, the “first layer” information box was transferred and not deleted.

However, this circumstance does not have any effect on the facts for which an infringement of Article 13 of the GDPR is attributed to it, as this is motivated by the fact that MAILTRACK attributes the status of processor, not controller, of the processing in question in its Privacy Policy.

“Proven Fact Eighth.”

MAILTRACK argues that this Agency indicated the possibility that, in the paid versions, recipients were not informed of the use of the MAILTRACK tool. However, the legend informing the recipient that the sender of the email is using the MAILTRACK tool can also be removed in the free version, albeit manually. Furthermore, the paid versions of the MAILTRACK service are directed solely at companies and professionals, in accordance with its Terms of Use and Contracting.

In response to these arguments, the contested resolution, in its Proven Fact Eighth, establishes that: “MAILTRACK also offers paid versions, which allow the sender of the emails to hide the legend indicating that such emails were sent using the Mailtrack tool.” This functionality was mentioned and not others because it was considered relevant in delimiting the facts that constituted the infringement. The statement of Proven Fact Eighth transcribed in the previous paragraph, which was already included in the proposed resolution, was not denied by MAILTRACK within the deadline for allegations, so this Agency was unaware of the possibility that users of the free MAILTRACK service could also hide their use from the recipient of an email, that is, hide the processing of their data, which only serves to confirm the infringement of Article 5.1.a) of the GDPR, regarding the violation of the principle of fairness.

Regarding the consideration that the paid versions are directed solely at companies and professionals, there is no evidence whatsoever that MAILTRACK controls who contracts its service. Thus, according to section 7.3 of the current Terms of Use and Contracting, "If the User is considered a consumer or user as indicated above, such User must refrain from using the Paid Services," which indicates that MAILTRACK has no control over who acquires its tool. On the other hand, it is not justified why this limitation on the acquisition of the paid service may be relevant for the purposes of this procedure. For all the above reasons, this allegation is dismissed.

**"FIFTH.- LACK OF MOTIVATION AND INCORRECT APPLICATION OF THE RULES IN CONSIDERING THAT MAILTRACK IS RESPONSIBLE FOR THE PROCESSING OF DATA RELATING TO THE COMMUNICATIONS OF ITS USERS WITH THE RECIPIENTS"**

The modification of the initial interpretation of the circumstances of the case made by this Agency in the Draft Decision to Initiate Sanctioning Procedure is justified by the very configuration of the procedure provided for in Article 60 of the GDPR, taking into account what is provided in section 3 of that article: "It shall promptly transmit a draft decision to the other interested supervisory authorities to obtain their opinion on the matter and shall duly take into account their views" (the underlining is ours). Furthermore, a relevant and justified objection was raised by the data protection authority of Saxony, which led to a negotiation process with the other interested authorities, so that on March 16, 2023, the Director of this Agency adopted a revised draft decision to initiate the sanctioning procedure, which was shared with the interested authorities for a period of two weeks so that they could formulate relevant and justified objections.

Subsequently, this Agency deemed it necessary to modify some aspects of the Revised Draft Decision, so on May 22, 2023, the Director of the AEPD adopted a draft resolution of the sanctioning procedure, which was transmitted through the IMI system, informing the interested authorities that they had four weeks from that moment to formulate relevant and justified objections.

It should be emphasized that, in this case, as reflected in Background Second, there were a total of 19 interested supervisory authorities, none of which presented a relevant and justified objection, so from that moment on, it is considered that all authorities (including this Agency) agree with said draft resolution decision and are bound by it, in accordance with the provisions of section 6 of Article 60 of the GDPR.

Consequently, the procedure of Article 60 of the GDPR establishes the possibility that the arguments contained in the initial draft decision may be modified according to the need to obtain consensus among the interested authorities.

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For all the above reasons, the present allegation is dismissed.

**"SIXTH.- MAILTRACK DOES NOT DETERMINE THE (ESSENTIAL) MEANS NOR THE PURPOSES OF THE PROCESSING OF THE DATA OF THE RECIPIENTS OF THE EMAILS, IN ACCORDANCE WITH THE CRITERIA OF THE EDPB"**

**"A. MAILTRACK DOES NOT DETERMINE THE (ESSENTIAL) MEANS OF PROCESSING"**

"A.i) A provider of technological services that provides services "as is" can be considered a processor, in accordance with the EDPB Guidelines"

In this subsection, MAILTRACK argues that the status of processor is compatible with providing a standardized service, with the end user being the one who makes the final decision on how the processing will be carried out. Furthermore, the service user can give instructions on how the service is provided, as the user has various functionalities available.

In light of these arguments, it should be noted that this Agency does not assert that any IT (information technology) service or technology-related service has the status of data controller. MAILTRACK defines the purposes of its tool for providing its email tracking service, establishing which data is collected and for what purpose it is processed. It is necessary to differentiate between the purposes of the emails set by the users and the purposes of the tracking determined by MAILTRACK.

“A.ii) MAILTRACK does not determine the “essential means” and, therefore, cannot be considered a data controller, in accordance with the EDPB Guidelines”

According to MAILTRACK, based on its interpretation of the EDPB guidelines, a processor can still be considered as such despite having some leeway to make decisions about how to carry out the processing, as long as those decisions are made regarding “non-essential means,” without this Agency providing explanations on what it considers essential means. MAILTRACK continues by stating that it does not use any cookies or any files that are stored on the recipients' devices, as that is not how the tool operates. Finally, MAILTRACK believes that the configuration of its service cannot be considered an essential means.

In response to these arguments, MAILTRACK is the one who decides on the purposes as indicated in the response to the previous subsection and also decides on the means, as it determines which categories of data will be processed, who the recipients of this data are (the users of the system), and the duration of the processing since there are no instructions from the users in this regard. It is not denied that it is the users who specifically determine who the recipients of the emails will be; therefore, it cannot be ruled out that there are cases where there is joint responsibility, but this circumstance does not occur when the user is an individual covered by the domestic exception.

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#### “B. MAILTRACK DOES NOT DETERMINE THE PURPOSES OF THE PROCESSING”

According to MAILTRACK, this Agency confuses the utility of its service with the purposes for which it is used, without the data of the recipients of the emails being processed for the purposes referred to in the contested resolution, such as “improving services” or “sending commercial communications,” but rather that they are processed solely and exclusively in accordance with the user's instructions, who acts as the controller by determining the purposes of this data.

In response to this allegation, as already stated in the contested resolution, in its capacity as a service provider to businesses and citizens, MAILTRACK determines the purposes and means of data processing in the provision of its service. This reasoning has also been applied in a similar case by the Austrian Supreme Court, which, applying the principles of the CJEU, does not classify all users of a social media platform as controllers of the processing in accordance with Article 4(7) of the GDPR, as this would make all users a controller (see the Austrian Higher Regional Court, Decision of 6/23/2021-6 Ob 56/21, BeckRS 2021, 19302, para. 138, [www.beck-online.de](http://www.beck-online.de)).

The violation of the rights and freedoms that may be caused to the recipients of the emails, given the certain possibility, as occurs in the facts reported by the claimant, that users of the MAILTRACK service do not have adequate guarantees regarding the processing of their data constitutes a violation of the GDPR; as provided in Recital 7 of the GDPR: “Natural persons should have control over their own personal data.”

The judgment of the Court of Justice of the European Union (Grand Chamber) of December 5, 2023, case C 683/21, regarding the status of the controller of the processing, establishes the following (provisional translation, original in English):

“[...] 28. Article 4(7) of the GDPR broadly defines the concept of ‘controller’ as the natural or legal person, public authority, service, or any other body that, alone or jointly with others, ‘determines the purposes and means of the processing’ of personal data.

29. The aim of this broad definition is, in accordance with that of the GDPR, to ensure effective protection of the freedoms and fundamental rights of natural persons and, in particular, a high level of protection of the right of every person to the protection of personal data concerning them (see, in this regard, the judgments of July 29, 2019, Fashion ID, C-40/17, EU:C:2019:629, para. 66, and April 28, 2022, Meta Platforms Ireland, C-319/20, EU:C:2022:322, para. 73 and cited case law).

30. The Court of Justice has already stated that any natural or legal person who, in accordance with their own objectives, influences the processing of such data and thus participates in determining the purposes and means of the processing may be considered a controller of that processing. In this

regard, it is not necessary for the purposes and means of the processing to be determined by written instructions or directives issued by the controller (see, in this regard, the..."

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Judgment of July 10, 2018, Jehovah's Witnesses, C-25/17, EU:C:2018:551, paragraphs 67 and 68) nor has it been formally designated as such.

31. Consequently, to determine whether an entity such as CNSP can be considered responsible for processing in the sense of Article 4, point 7, of the GDPR, it is necessary to examine whether that entity has effectively influenced, for its own purposes, the determination of the purposes and means of such processing. [...] In this case, MAILTRACK has decided to create the email tracking service for its own purposes, its marketing, establishing the purpose of processing the data of the recipients of the emails (the tracking of the emails) and has determined the means for such processing to take place. To achieve its own purposes, MAILTRACK uses a pixel as an essential means. In this regard, the European Data Protection Board (EDPB), in compliance with the objective of ensuring the consistent application of the General Data Protection Regulation (as assigned to it by Article 70 of the GDPR), is developing guidelines to provide a clear and transparent basis regarding the technical scope of application of Article 5.3 of Directive 2002/58/EC of the European Parliament and of the Council of July 12, 2002. (Guidelines 2/2023 on the technical scope of application of Article 5.3 of the ePrivacy Directive). In paragraph 46 of the public consultation version of the aforementioned Guidelines, the following is stated regarding the tracking pixel (unofficial translation):

"This pixel normally serves no purpose related to the content itself; its sole purpose is to establish communication from the client to the host of the pixel."

Consequently, the inclusion of this tool serves no other purpose than to process data for the provision of the service that MAILTRACK offers to its clients.

For all the above reasons, this allegation is dismissed.

**"SEVENTH.- MAILTRACK ACTS SOLELY ON BEHALF OF THE USER FOLLOWING THEIR INSTRUCTIONS"**

**"A. THE USER CAN GIVE DETERMINING INSTRUCTIONS"**

This allegation reiterates the argument that MAILTRACK does not determine the "essential means" of processing, as its users can choose among the different services and functionalities offered in the MAILTRACK tool as they see fit.

In response to these arguments, it is pertinent to bring up the points developed in response to allegation SIXTH A.ii) of MAILTRACK, regarding the fact that it decides on the means, as it determines which categories of data will be processed, who the recipients of this data are (the users of the system), and the duration of the processing since there are no instructions from the users in this regard, beyond the fact that current users, as MAILTRACK claims, can decide the retention period of the data of each of their recipients.

**"B. MAILTRACK ONLY ACTS ON BEHALF OF THE USER"**

MAILTRACK asserts that it acts solely on behalf of its users in the processing of personal data of the recipients of the emails sent through its tool, and that the contested resolution confuses the utility of the service with the purposes for which it is used.

As this Agency argued in the contested resolution, MAILTRACK decides on the purposes of the processing because it determines which data is processed, for how long, the categories of recipients, and even the categories of data subjects, as they will be those who have an email address.

Furthermore, the fact that users can deactivate tracking does not prevent considering that it is MAILTRACK itself that decides on the means, since it is MAILTRACK that enables these possibilities and makes the choice of email tracking possible.

For all the above reasons, this allegation is dismissed.

**"EIGHTH.- THE APPLICATION OF THE DOMESTIC EXCEPTION DOES NOT AFFECT MAILTRACK'S STATUS AS A DATA PROCESSOR REGARDING THE DATA OF THE RECIPIENTS"**

They are not based on the emails but on subsequent checks, due to the service you provide. In response to this allegation, it should be noted that, according to MAILTRACK's Privacy Policy, the mere use of its tool makes the user the data controller. This Agency maintained in the contested resolution that one cannot speak of a data processor if there is no data controller. This is a statement that is deduced from the very definition of a data processor, as a processor is one who "processes personal data on behalf of the data controller" (Article 4.8 GDPR), that is, for there to be a processor, there must always be a controller.

For all the above reasons, this allegation is dismissed.

"NINTH.- THE USER WHO SENT THE EMAIL TO THE COMPLAINANT WAS THE ONE WHO SHOULD HAVE THE APPROPRIATE GUARANTEES AS IT WAS NOT A PRIVATE INDIVIDUAL"

According to MAILTRACK, the user who sends the emails subject to the complaint is the Student Council of the Chemnitz University of Technology, which constitutes...

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as the data controller and, as such, is the one who must ensure that there are necessary guarantees for the data subjects whose data is being processed to have control over it.

However, the infringement attributed to MAILTRACK is due to the very design of its tool, as MAILTRACK does not verify who its clients are and whether the domestic exception applies to them. Furthermore, as already stated in the contested resolution, the concepts of controller and processor are functional concepts, as they are used to assign responsibilities based on the role each party plays. That the Student Council of the Chemnitz University of Technology is responsible for the processing of personal data that is processed in the course of its activities does not exclude that MAILTRACK, in turn, is responsible for the processing in question.

For all the above reasons, this allegation is dismissed.

"TENTH - CONCLUSIONS"

MAILTRACK understands that its position regarding the data processing of the recipients cannot be as a data controller, but rather as a processor, meeting the requirements established by the case law of the CJEU to be considered as such. These are: if the user does not use the MAILTRACK service, MAILTRACK does not process the recipients' data; it is the users of the service and not MAILTRACK who determine the purposes and means of the processing; and finally, MAILTRACK complies with the users' instructions, in the terms required by the Guidelines.

In these conclusions, MAILTRACK summarizes the arguments developed in the previous sections, which have already been addressed in detail in each heading.

For all the above reasons, this allegation is dismissed.

"ELEVENTH - THE ALLEGED INFRINGEMENTS DO NOT PROCEED"

In this allegation, MAILTRACK argues that, due to its status as a processor, it would be fundamentally subject to the obligations established in Articles 28 and 29 of the GDPR and to the infringements specifically established for that role in the GDPR, which do not coincide with the infringements that the AEPD attributes to MAILTRACK in the Resolution.

In the previous responses to MAILTRACK's allegations, the reasons have been established for considering it a data controller, a status from which the responsibility for the commission of the infringements established in the contested resolution derives.

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Next, each of the arguments expressed by MAILTRACK regarding each infringement is addressed:

"1. REGARDING THE INFRINGEMENT DUE TO LACK OF INFORMATION:"

In this subsection, MAILTRACK argues that, as a processor, it is not responsible for complying with the obligations established in Articles 13 and 14 of the GDPR.

Although MAILTRACK believes it provides clear information in its Privacy Policy, it does not include the essential information for which it is attributed the violation of Articles 13 and 14 of the GDPR,

namely, that it has the status of data controller.

“2. REGARDING THE INFRINGEMENT DUE TO LACK OF LAWFULNESS OF THE PROCESSING:”  
Similarly to the previous subsection, MAILTRACK asserts that, given its status as a processor, the attribution of this infringement is inappropriate, as it is the users, in their capacity as data controllers of the recipients' data of the emails sent through the MAILTRACK service, who can and must determine the lawfulness and bases that legitimize the use of that information.

In response to this argument, in this case, the claimant states that in the processing in question, their consent was not previously requested for the collection and subsequent processing operations of their personal data. Neither the design of the MAILTRACK tool nor its Terms of Service distinguish between users of its service to whom the domestic exception applies or not.

“3. REGARDING THE INFRINGEMENT OF THE OBLIGATION OF FAIRNESS AND TRANSPARENCY IN THE PROCESSING OF PERSONAL DATA”

In this subsection, MAILTRACK reiterates what was indicated in the Allegations to the Proposal for Resolution, reproducing arguments that have already been addressed in the grounds of the contested resolution. Similarly, it repeats arguments from the appeal for reconsideration that have already been answered in other sections.

Regarding the grounds for the infringement of Article 5.1.a) of the GDPR, in which this Agency pointed out that “the recipients of the emails in some cases do not even realize that they are being tracked, because the notice ‘Sender notified by MAILTRACK’ in the tracked email can be disabled by users if they purchase a ‘PRO’ or ‘ADVANCED’ subscription,” it should be added that, as MAILTRACK argues in its FOURTH allegation of this appeal, specifically in the allegations regarding the Eighth Proven Fact, the free version also allows the removal of the notification message that the email has been sent using the MAILTRACK tool: “free users must (and therefore can) remove it manually.”

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Regarding the mechanism for excluding the processing of data, MAILTRACK presents along with the appeal the "Document No. 2," which does not undermine what was stated by the contested resolution, in that the recipient of the emails must undertake a series of cumbersome operations to avoid the processing of their data, because this document only certifies that the user of the service can exclude certain recipients, not that the recipients can prevent their data from being processed without their knowledge, as can occur with the MAILTRACK tool, as this Agency has been made aware, as developed in the previous paragraph.

Consequently, both MAILTRACK and the users of its tool can process personal data of the recipients of the emails without their knowledge, even in the free version of its tool, and without there being an accessible way for the recipients of the emails using the MAILTRACK service to avoid the processing of their personal data.

For all the above reasons, this allegation is dismissed.

TWELFTH.- APPLICATION OF MITIGATING FACTORS

“1) The nature, severity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damage and harm they have suffered, pursuant to Article 83.2 a) of the GDPR:”

According to MAILTRACK, if it were considered responsible for the processing of its tool, the "paid users," for whom the domestic exception would not apply, should be excluded from the users.

In response to this allegation, it should be noted that the number of users of the MAILTRACK service mentioned in the contested resolution highlights the amount of data processing that has taken place without the necessary guarantees.

In a subsidiary manner, MAILTRACK does not provide any evidence regarding the users of its service who qualify as entrepreneurs or professionals.

“2) Any measures taken by the controller or processor to mitigate the possible damage and harm suffered by the data subjects, pursuant to Article 83.2 c) of the GDPR:”

According to MAILTRACK, it has gradually implemented support measures and improvements to avoid possible harm and enhance the transparency of the service, enabling the recipient of the emails to avoid tracking by the user.

Regarding these circumstances alleged by MAILTRACK, it was already sufficiently motivated in the resolution how, to avoid the processing by MAILTRACK, the recipient of the emails would have to undertake a series of cumbersome operations, and that the information on how to perform these operations was not even available on the MAILTRACK website.

“3) The degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement, pursuant to Article 83.2 f) of the GDPR.”

MAILTRACK claims that it has modified its Privacy Policy and its Frequently Asked Questions section, which demonstrates its involvement and commitment to the rights of users and recipients.

However, MAILTRACK has not taken any measures to ensure the lawfulness of the processing carried out with its tool, based on any of the grounds established in Article 6.1 of the GDPR. It has also not provided the recipients of the emails with an accessible and user-friendly system to avoid the processing of their data without depending on the decision of the MAILTRACK user; nor is it even communicated to all users that their personal data will be processed, due to the possibility that the MAILTRACK tool user may acquire paid versions that allow for the automatic removal of the notification message that the sent email is being tracked with MAILTRACK or, in the case of the free version, may be manually removed.

For all the above reasons, this allegation is dismissed.

III

### Conclusion

Consequently, in this appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

Having reviewed the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by THE MAIL TRACK COMPANY against the resolution of this Spanish Agency for Data Protection issued on June 23, 2023, in file EXP202306256.

SECOND: TO NOTIFY this resolution to THE MAIL TRACK COMPANY.

THIRD: To warn the sanctioned party that the imposed sanction must be enforced once this resolution is notified, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of 17 of

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December, by depositing it into the restricted account no. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., or otherwise, it will proceed to its collection in the executive period.

If the date of notification falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional

provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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